

26STCV10313 26STCV10313

County: los-angeles

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TENTATIVE RULING

Defendants Sarkis Grigoryan and Arshak Grigoryan's Motion to Set Aside Default is GRANTED.

Introduction

On March 30, 2026, Plaintiff State Farm Mutual Automobile Insurance Company filed its Complaint for declaratory relief against Defendants Sarkis Grigoryan, Arshak Grigoryan, Ervin Yadegar, and Garnik Yadegar, arising out of a coverage dispute concerning claims from an alleged November 13, 2024 automobile accident.

On July 20, 2026, Plaintiff requested entry of default against the Grigoryan Defendants and mail-served the request that same day. Default was entered by the clerk on July 20, 2026.

On July 29, 2026, the Grigoryan Defendants signed and served the instant Motion to Set Aside Default under Code of Civil Procedure section 473(b). The Motion was received by the Court on July 29, 2026, rejected for filing defects, and accepted for filing on August 4, 2026.

On August 10, 2026, Plaintiff filed its Opposition.

On August 17, 2026, the Grigoryan Defendants filed their Reply.

Legal Standard

Code of Civil Procedure, section 473, subdivision (b) provides for two distinct types of relief—commonly differentiated as “discretionary” and “mandatory”—from certain prior actions or proceedings in the trial court. (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1124 (Luri).)

The discretionary portion of section 473, subdivision (b) provides: “The court may, upon terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

(Code Civ. Proc., § 473, subd. (b).)

The mandatory portion of section 473 requires the court to, “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd. (b).)

Discussion

Defendants Sarkis Grigoryan and Arshak Grigoryan, appearing in pro per, move to set aside the default entered against them by the clerk on July 20, 2026. The motion is timely, having been brought well within the six-month period allowed by Code of Civil Procedure section 473(b), and is accompanied by the proposed Answer of each defendant (Motion, Exhibits A and B).

The Court finds that the default resulted from the mistake and excusable neglect of the self-represented defendants, and that a proposed responsive pleading has been submitted with the motion as section 473(b) requires. Relief is therefore warranted.

Conclusion

The motion is GRANTED. The default entered on July 20, 2026, against Defendants Sarkis Grigoryan and Arshak Grigoryan is set aside. Defendants shall each file and serve their respective Answer within ten (10) days of the date of this order.

Moving parties to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.